

**SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF QUEENS**

----- X
DENNIS DEMARCO,

Index No.:

-against-

SUMMONS

THE CITY OF NEW YORK, THE CITY OF NEW YORK
POLICE DEPARTMENT and DAVID BENNETT

Defendant.
----- X

TO THE ABOVE-NAMED DEFENDANT(S):

You Are Hereby Summoned to Answer the Complaint in this action and to serve a copy of your Answer, or, if the Complaint is not served with this Summons, to serve a Notice of Appearance, on the Plaintiff's attorney within twenty (20) days after the service of this Summons, exclusive of the date of service (or within 30 days after the service is complete if this Summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you for the relief demanded in the Complaint.

The Plaintiff designates Queens County as the place of trial. The basis of venue is New York Civil Practice Law and Rules §504(3).

Dated: Southampton, New York
July 27, 2016

Respectfully Submitted,



William E. Grigo, Esq.
Law Office of William E. Grigo, P.C.
Attorneys for the Plaintiff
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Southampton, New York 11968
Tel.: (631) 287-4988
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To: The City of New York
The Comptroller of the City of New York
Municipal Building - Room 1225
1 Centre Street
New York, New York 10007

The City of New York
New York Secretary of State
One Commerce Plaza
99 Washington Avenue
Albany, New York 12231

The City of New York Police Department
1 Police Plaza
New York, New York 10038

David Bennett

**SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF QUEENS**

----- x

DENNIS DEMARCO,

Index No.:

-against-

VERIFIED COMPLIANT

THE CITY OF NEW YORK, CITY OF NEW YORK
POLICE DEPARTMENT and DAVID BENNETT

Defendant.

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Plaintiff, DENNIS DEMARCO, by his attorneys, LAW OFFICE OF WILLIAM E. GRIGO, P.C., hereby set forth and allege, upon information and belief, as follows:

1. That, at all times hereinafter mentioned, the Plaintiff, DENNIS DEMARCO, was and still is a resident of the County of Suffolk and the State of New York.
2. That, at all times hereinafter mentioned, the Defendant, CITY OF NEW YORK, was and still is a domestic municipal corporation duly organized and existing under and by the virtue of the State of New York.
3. That, at all times hereinafter mentioned, the Defendant, CITY OF NEW YORK POLICE DEPARTMENT, was and still is a domestic municipal corporation duly organized and existing under and by the virtue of the State of New York.
4. That, at all times hereinafter mentioned, the Defendant, DAVID BENNETT, was and still is a resident of the City and State of New York.
5. That at all times hereinafter mentioned, the Defendant, DAVID BENNETT, was and still is a New York City Police Officer, and/or agent, servant or employee of the Defendants, THE CITY OF NEW YORK.
6. That at all times hereinafter mentioned, the Defendant, DAVID BENNETT, was and still is a New York City Police Officer, and/or agent, servant or employee of the Defendant, CITY OF NEW YORK POLICE DEPARTMENT.
7. That at all times hereinafter mentioned, the Defendant, DAVID BENNETT, was and still is a New York City Police Officer, and/or agent, servant or employee of the Defendants,

THE CITY OF NEW YORK., working within the scope and course of his employment as a New York City Police Officer employed by Defendants, THE CITY OF NEW YORK.

8. That at all times hereinafter mentioned, the Defendant, DAVID BENNETT, was and still is a New York City Police Officer, and/or agent, servant or employee of the Defendants, CITY OF NEW YORK POLICE DEPARTMENT, working within the scope and course of his employment as a New York City Police Officer employed by Defendant, CITY OF NEW YORK POLICE DEPARTMENT.
9. That the Plaintiff, DENNIS DEMARCO, has complied with all the conditions precedent to the commencement of this action against the Defendants in that the Plaintiff's Notice of Claim were filed and served on November 14, 2015 within ninety days of the date that the within cause of action having been caused to accrue and that thirty days have elapsed and the claim remains unpaid and unadjusted. Further, that the Plaintiff, DENNIS DEMARCO, testified at an oral examination pursuant to the General Municipal Law on April 26, 2016 and that this action is being commenced within one year and ninety days of the date that the within cause of action having been caused to accrue.
10. That on or about August 22, 2015 at or near 120-01 Roosevelt Avenue, County of Queens, State of New York, the Plaintiff, DENNIS DEMARCO, was approached by a police officer, and/or agents, servants and/or employees of the Defendant and/or Defendants.
11. That on or about August 22, 2015 at or near 120-01 Roosevelt Avenue, County of Queens, State of New York, the Plaintiff, DENNIS DEMARCO, was approached by Defendant, DAVID BENNETT, the police officer, and/or agents, servants and/or employees of the Defendant and/or Defendants.
12. That the police officer, and/or agents, servants, and/or employees of the Defendant and/or Defendants, spoke to the Plaintiff, DENNIS DEMARCO, in an aggressive, threatening, and disrespectful manner.
13. That the aforementioned police officer, and/or agents, servants, and/or employees of the Defendant and/or Defendants, along with approximately three additional police officers, and/or agents, servants, and/or employees of the Defendant and/or Defendants, aggressively approached the Plaintiff, DENNIS DEMARCO, and tackled or threw Plaintiff, DENNIS DEMARCO, to the ground.

14. That the aforementioned police officer, and/or agents, servants, and/or employees of the Defendant and/or Defendants, along with approximately three additional police officers, and/or agents, servants, and/or employees of the Defendant and/or Defendants, attacked, kicked, and kned the Plaintiff, DENNIS DEMARCO, while the Plaintiff, DENNIS DEMARCO, was on the ground.
15. That the aforementioned police officer, and/or agents, servants, and/or employees of the Defendant and/or Defendants, along with approximately three additional police officers, and/or agents, servants, and/or employees of the Defendant and/or Defendants, attacked, kicked, and kned the Plaintiff, DENNIS DEMARCO, while the Plaintiff, DENNIS DEMARCO, was handcuffed on the ground.
16. That the Plaintiff, DENNIS DEMARCO, was arrested, no advised of the charges against him, taken to a nearby Precinct, and then to Elmhurst Hospital.
17. That the Plaintiff, DENNIS DEMARCO, was forced to appear in the Criminal Court of the City of New York, County of Queens, whereby the charges against him were adjourned in contemplation of dismissal.

AS AND FOR A FIRST CAUSE OF ACTION

18. That the Plaintiff, DENNIS DEMARCO, repeats, reiterates, and realleges, each and every allegation as set forth in paragraphs 1 through 17 with the same force and effect as if set forth at length herein.
19. That on or about August 22, 2015, the Plaintiff, DENNIS DEMARCO, was assaulted and battered by the aforementioned police officers, and/or agents, servants, and/or employees of the Defendant and/or Defendants.
20. That on or about August 22, 2015, the Plaintiff, DENNIS DEMARCO, was assaulted and battered by the aforementioned police officers, and/or agents, servants, and/or employees of the Defendant and/or Defendants without justification, cause, or excuse.
21. That the assault and battery took place at or near 120-01 Roosevelt Avenue, County of Queens, State of New York, and other locations where the Plaintiff, DENNIS DEMARCO, was held against his will by the aforementioned police officers, and/or agents, servants, and/or employees of the Defendant and/or Defendants.
22. That the aforementioned assault and battery of the Plaintiff, DENNIS DEMARCO, was carried out and/or caused by the aforementioned police officers, and/or agents, servants,

and/or employees of the Defendant and/or Defendants, while working within the scope and course of their employment with the Defendant, THE CITY OF NEW YORK.

23. That the aforementioned assault and battery of the Plaintiff, DENNIS DEMARCO, was carried out and/or caused by the aforementioned police officers, and/or agents, servants, and/or employees of the Defendant and/or Defendants, while working within the scope and course of their employment with the Defendant, CITY OF NEW YORK POLICE DEPARTMENT.
24. That by reason of the foregoing, the Plaintiff, DENNIS DEMARCO, was injured, rendered sick, sore, lame, caused to undergo hospital and medical treatment, was unable to pursue his usual and regular activities, and upon information and belief, his injuries are permanent in nature and effect.
25. That this action falls within one or more of the exceptions set forth in Civil Practice Laws and Rules §1602.
26. That by reason of the foregoing, the Plaintiff, DENNIS DEMARCO, has sustained damages in an amount in excess of the jurisdictional limits of all lower Courts.

AS AND FOR A SECOND CAUSE OF ACTION

27. That the Plaintiff, DENNIS DEMARCO, repeats, reiterates, and realleges, each and every allegation as set forth in paragraphs 1 through 26 with the same force and effect as if set forth at length herein.
28. That all of the aforementioned acts, carried out, caused, or committed by the aforementioned police officers, and/or agents, servants, and/or employees of the Defendant and/or Defendants were due to the negligence, recklessness and carelessness of such police officers, agents, servants and/or other employees of the Defendant and/or Defendants.
29. That all of the aforementioned acts, carried out, caused, or committed by the aforementioned police officers, and/or agents, servants, and/or employees of the Defendant, THE CITY OF NEW YORK, were due to the negligence, recklessness and carelessness of such police officers, agents, servants and/or other employees of the Defendant, THE CITY OF NEW YORK.
30. That all of the aforementioned acts, carried out, caused, or committed by the aforementioned police officers, and/or agents, servants, and/or employees of the

Defendant, THE CITY OF NEW YORK POLICE DEPARTMENT, were due to the negligence, recklessness and carelessness of such police officers, agents, servants and/or other employees of the Defendant, THE CITY OF NEW YORK POLICE DEPARTMENT.

31. That all of the aforementioned acts, carried out, caused, or committed by the aforementioned police officer, Defendant, DAVID BENNETT, and/or agents, servants, and/or employees of the Defendant and/or Defendants were due to the negligence, recklessness and carelessness of such police officers, agents, servants and/or other employees of the Defendant and/or Defendants.
32. That all of the aforementioned acts, carried out, caused, or committed by the aforementioned police officer, Defendant, DAVID BENNETT, and/or agents, servants, and/or employees of the Defendant, THE CITY OF NEW YORK, were due to the negligence, recklessness and carelessness of such police officers, agents, servants and/or other employees of the Defendant, THE CITY OF NEW YORK.
33. That all of the aforementioned acts, carried out, caused, or committed by the aforementioned police officer Defendant, DAVID BENNETT, and/or agents, servants, and/or employees of the Defendant, THE CITY OF NEW YORK POLICE DEPARTMENT, were due to the negligence, recklessness and carelessness of such police officers, agents, servants and/or other employees of the Defendant, CITY OF NEW YORK POLICE DEPARTMENT.
34. That the Defendant and/or Defendants were also negligent, reckless, and careless in the negligent hiring, negligent retention, and negligent training of the aforementioned various police officers, agents, servants and/or other employees, who were employed by the Defendant and/or Defendants.
35. That the Defendant, THE CITY OF NEW YORK, were also negligent, reckless, and careless in the negligent hiring, negligent retention, and negligent training of the aforementioned various police officers, agents, servants and/or other employees, who were employed by the Defendant, THE CITY OF NEW YORK.
36. That the Defendant, CITY OF NEW YORK POLICE DEPARTMENT, were also negligent, reckless, and careless in the negligent hiring, negligent retention, and negligent training of the aforementioned various police officers, agents, servants and/or other

employees, who were employed by the Defendant, CITY OF NEW YORK POLICE DEPARTMENT.

37. That the Defendant and/or Defendants were also negligent, reckless, and careless in the negligent hiring, negligent retention, and negligent training of the aforementioned various police officers, agents, servants and/or other employees, including Defendant, DAVID BENNETT, who were employed by the Defendant and/or Defendants.
38. That the Defendant, THE CITY OF NEW YORK, were also negligent, reckless, and careless in the negligent hiring, negligent retention, and negligent training of the aforementioned various police officers, agents, servants and/or other employees, including Defendant, DAVID BENNETT, who were employed by the Defendant, THE CITY OF NEW YORK.
39. That the Defendant, CITY OF NEW YORK POLICE DEPARTMENT, were also negligent, reckless, and careless in the negligent hiring, negligent retention, and negligent training of the aforementioned various police officers, agents, servants and/or other employees, including Defendant, DAVID BENNETT, who were employed by the Defendant, CITY OF NEW YORK POLICE DEPARTMENT.
40. That by reason of the foregoing, the Plaintiff, DENNIS DEMARCO, was injured, rendered sick, sore, lame, caused to undergo hospital and medical treatment, was unable to pursue his usual and regular activities, and upon information and belief, his injuries are permanent in nature and effect.
41. That this action falls within one or more of the exceptions set forth in Civil Practice Laws and Rules §1602.
42. That by reason of the foregoing, the Plaintiff, DENNIS DEMARCO, has sustained damages in an amount in excess of the jurisdictional limits of all lower Courts.

AS AND FOR A THIRD CAUSE OF ACTION

43. That the Plaintiff, DENNIS DEMARCO, repeats, reiterates, and realleges, each and every allegation as set forth in paragraphs 1 through 42 with the same force and effect as if set forth at length herein.
44. That Plaintiff, DENNIS DEMARCO, was caused to be falsely arrested and falsely imprisoned without probable cause.
45. That the Plaintiff, DENNIS DEMARCO, was arrested without an arrest warrant.

46. That the false arrest and false imprisonment took place at or near 120-01 Roosevelt Avenue, County of Queens, State of New York, and other locations where the Plaintiff, DENNIS DEMARCO, was held against his will by the aforementioned police officers, and/or agents, servants, and/or employees of the Defendant and/or Defendants.
47. That the aforementioned false arrest and false imprisonment of Plaintiff, DENNIS DEMARCO, was carried out, caused, or committed by the aforementioned police officers, and/or agents, servants, and/or employees of the Defendant and/or Defendants.
48. That the aforementioned false arrest and false imprisonment of Plaintiff, DENNIS DEMARCO, was carried out, caused, or committed by the aforementioned police officers, and/or agents, servants, and/or employees of the Defendant, THE CITY OF NEW YORK.
49. That the aforementioned false arrest and false imprisonment of Plaintiff, DENNIS DEMARCO, was carried out, caused, or committed by the aforementioned police officers, and/or agents, servants, and/or employees of the Defendant, CITY OF NEW YORK POLICE DEPARTMENT.
50. That the aforementioned false arrest and false imprisonment of Plaintiff, DENNIS DEMARCO, was carried out, caused, or committed by the Defendant, DAVID BENNETT, and/or agents, servants, and/or employees of the Defendant and/or Defendants while working within the scope and course of the employment with the Defendant and/or Defendants.
51. That the aforementioned false arrest and false imprisonment of Plaintiff, DENNIS DEMARCO, was carried out, caused, or committed by the Defendant, DAVID BENNETT, and/or agents, servants, and/or employees of the Defendant, THE CITY OF NEW YORK, while working within the scope and course of the employment with the Defendant, THE CITY OF NEW YORK.
52. That the aforementioned false arrest and false imprisonment of Plaintiff, DENNIS DEMARCO, was carried out, caused, or committed by the Defendant, DAVID BENNETT, and/or agents, servants, and/or employees of the Defendant, CITY OF NEW YORK POLICE DEPARTMENT, while working within the scope and course of the employment with the Defendant, CITY OF NEW YORK POLICE DEPARTMENT

53. That by reason of the foregoing, the Plaintiff, DENNIS DEMARCO, was injured, rendered sick, sore, lame, caused to undergo hospital and medical treatment, was unable to pursue his usual and regular activities, and upon information and belief, his injuries are permanent in nature and effect.
54. That this action falls within one or more of the exceptions set forth in Civil Practice Laws and Rules §1602.
55. That by reason of the foregoing, the Plaintiff, DENNIS DEMARCO, has sustained damages in an amount in excess of the jurisdictional limits of all lower Courts.

AS AND FOR A FOURTH CAUSE OF ACTION

56. That the Plaintiff, DENNIS DEMARCO, repeats, reiterates, and realleges, each and every allegation as set forth in paragraphs 1 through 55 with the same force and effect as if set forth at length herein.
57. That the force used by the Defendant and/or Defendants upon the person of the Plaintiff as described herein was excessive, unnecessary, unreasonable, and greater than that which was reasonable and prudent under the circumstances.
58. That the force used by the Defendant, DAVID BENNETT, while working within the scope and course of the employment with the Defendant and/or Defendants upon the person of the Plaintiff as described herein was excessive, unnecessary, unreasonable, and greater than that which was reasonable and prudent under the circumstances.
59. That the force used by the Defendant, DAVID BENNETT, while working within the scope and course of the employment with the Defendant, THE CITY OF NEW YORK, upon the person of the Plaintiff as described herein was excessive, unnecessary, unreasonable, and greater than that which was reasonable and prudent under the circumstances.
60. That the force used by the Defendant, DAVID BENNETT, while working within the scope and course of the employment with the Defendant, CITY OF NEW YORK POLICE DEPARTMENT, upon the person of the Plaintiff as described herein was excessive, unnecessary, unreasonable, and greater than that which was reasonable and prudent under the circumstances.
61. That by reason of the foregoing, the Plaintiff, DENNIS DEMARCO, was injured, rendered sick, sore, lame, caused to undergo hospital and medical treatment, was unable

to pursue his usual and regular activities, and upon information and belief, his injuries are permanent in nature and effect.

62. That this action falls within one or more of the exceptions set forth in Civil Practice Laws and Rules §1602.

63. That by reason of the foregoing, the Plaintiff, DENNIS DEMARCO, has sustained damages in an amount in excess of the jurisdictional limits of all lower Courts.

AS AND FOR A FIFTH CAUSE OF ACTION

64. That the Plaintiff, DENNIS DEMARCO, repeats, reiterates, and realleges, each and every allegation as set forth in paragraphs 1 through 63 with the same force and effect as if set forth at length herein.

65. That at all times herein mentioned, the acts of the Defendant and/or Defendants as described were under the color of law.

66. That the acts of the Defendant and/or Defendants were without warrant, authority of law, any reasonable cause or belief that the Plaintiff, DENNIS DEMARCO, committed any crime.

67. That the aforementioned acts constituted a deprivation of the Plaintiff's Constitutional rights, liberties, and freedoms under color of law, pursuant to 42 U.S.C. §1983.

68. That by reason of the foregoing, the Plaintiff, DENNIS DEMARCO, was injured, rendered sick, sore, lame, caused to undergo hospital and medical treatment, was unable to pursue his usual and regular activities, and upon information and belief, his injuries are permanent in nature and effect.

69. That this action falls within one or more of the exceptions set forth in Civil Practice Laws and Rules §1602.

70. That by reason of the foregoing, the Plaintiff, DENNIS DEMARCO, has sustained damages in an amount in excess of the jurisdictional limits of all lower Courts.

AS AND FOR A SIXTH CAUSE OF ACTION

71. That the Plaintiff, DENNIS DEMARCO, repeats, reiterates, and realleges, each and every allegation as set forth in paragraphs 1 through 70 with the same force and effect as if set forth at length herein.

72. That the Plaintiff, DENNIS DEMARCO, did not commit any illegal act, nor did the individually named Defendant, DAVID BENNETT, have reason to believe that the

Plaintiff committed an unlawful act, either before or at the time he was falsely arrested and imprisoned, assaulted and battered, excessive force was used against him, and deprived him of his constitutional rights pursuant to the Fourth, Fifth, and Fourteenth Amendments as set forth in the Constitution of the United States, 42 U.S.C. §1983, and the Constitution of the State of New York.

73. That at all times hereinafter mentioned, Defendant, DAVID BENNETT, was employed in his respective capacity by the Defendant and/or Defendants and was acting under the color of his official capacity and his act were performed under the color of the policies, statutes, ordinances, rules and regulations of the Defendant and/or Defendant.
74. That at all times hereinafter mentioned, Defendant, DAVID BENNETT, was employed in his respective capacity by the Defendant, THE CITY OF NEW YORK, and was acting under the color of his official capacity and his act were performed under the color of the policies, statutes, ordinances, rules and regulations of the Defendant, THE CITY OF NEW YORK.
75. That at all times hereinafter mentioned, Defendant, DAVID BENNETT, was employed in his respective capacity by the Defendant, CITY OF NEW YORK POLICE DEPARTMENT, and was acting under the color of his official capacity and his act were performed under the color of the policies, statutes, ordinances, rules and regulations of the Defendant, CITY OF NEW YORK POLICE DEPARTMENT.
76. Defendant, DAVID BENNETT, is named in his individual and official capacities for his violation of the constitutional rights of Plaintiff, DENNIS DEMARCO, pursuant to 42 U.S.C. 1983. Although Defendant and/or Defendants knew or should have known of this pattern of conduct carried out by their agents, servants and/or employees, the Defendant and/or Defendants, have not taken any steps or made any efforts to halt this course of conduct, to make redress to the Plaintiff, DENNIS DEMARCO, or other citizens injured thereby or, upon information and belief, to take any disciplinary action against their employees or agents.
77. Defendant, DAVID BENNETT, is named in his individual and official capacities for his violation of the constitutional rights of Plaintiff, DENNIS DEMARCO, pursuant to 42 U.S.C. 1983. Although Defendant and/or Defendants knew or should have known of this pattern of conduct carried out by their agents, servants and/or employees, the Defendant,

THE CITY OF NEW YORK, have not taken any steps or made any efforts to halt this course of conduct, to make redress to the Plaintiff, DENNIS DEMARCO, or other citizens injured thereby or, upon information and belief, to take any disciplinary action against their employees or agents.

78. Defendant, DAVID BENNETT, is named in his individual and official capacities for his violation of the constitutional rights of Plaintiff, DENNIS DEMARCO, pursuant to 42 U.S.C. 1983. Although Defendant and/or Defendants knew or should have known of this pattern of conduct carried out by their agents, servants and/or employees, the Defendant, CITY OF NEW YORK POLICE DEPARTMENT, have not taken any steps or made any efforts to halt this course of conduct, to make redress to the Plaintiff, DENNIS DEMARCO, or other citizens injured thereby or, upon information and belief, to take any disciplinary action against their employees or agents.
79. The unlawful and illegal conduct of the Defendants, their agents, servants and/or employees and each of them, deprived the Plaintiff, DENNIS DEMARCO, of the following rights, privileges and immunities guaranteed by the Constitution of the United States and of the State of New York: the Right of Plaintiff, DENNIS DEMARCO, to be secure in his person and effects against unreasonable search and seizure under the Fourth, Fifth, and Fourteenth Amendments to the Constitution of the United States; the right of Plaintiff, DENNIS DEMARCO, to be informed of the nature and cause of the accusation against him as guaranteed by the Sixth and Fourteenth Amendments to the Constitution of the United States; the right of Plaintiff, DENNIS DEMARCO, to not be deprived of life, liberty, or property, without due process of law; the right of Plaintiff, DENNIS DEMARCO, to the equal protection of the laws secured by the Fourteenth Amendment to the Constitution of the United States.
80. That the aforementioned deprivation of the Constitutional rights of the Plaintiff, DENNIS DEMARCO, was the result of the unconstitutional acts of the Defendant, DAVID BENNETT, while acting under color of state law and within the scope of his employment.
81. That the aforementioned deprivation of the Constitutional rights of the Plaintiff, DENNIS DEMARCO, was the result of the Defendant and/or Defendants' custom and/or policy of detaining individuals without probable cause.

82. That the aforementioned deprivation of the Constitutional rights of the Plaintiff, DENNIS DEMARCO, was the result of the Defendant, THE CITY OF NEW YORK, custom and/or policy of detaining individuals without probable cause.
83. That the aforementioned deprivation of the Constitutional rights of the Plaintiff, DENNIS DEMARCO, was the result of the Defendant, CITY OF NEW YORK POLICE DEPARTMENT, custom and/or policy of detaining individuals without probable cause.
84. That the aforementioned deprivation of the Constitutional rights of the Plaintiff, DENNIS DEMARCO, was the result of the Defendant and/or Defendants' custom and/or policy of failing to discipline officers for detaining individuals without probable cause.
85. That the aforementioned deprivation of the Constitutional rights of the Plaintiff, DENNIS DEMARCO, was the result of the Defendant, THE CITY OF NEW YORK, custom and/or policy of failing to discipline officers for detaining individuals without probable cause.
86. That the aforementioned deprivation of the Constitutional rights of the Plaintiff, DENNIS DEMARCO, was the result of the Defendant, CITY OF NEW YORK POLICE DEPARTMENT, custom and/or policy of failing to discipline officers for detaining individuals without probable cause.
87. That the aforementioned customs and/or policies may be inferred from the existence of other similar civil rights actions that have been brought against the Defendant and/or Defendants.
88. That the aforementioned customs and/or policies may be inferred from the existence of other similar civil rights actions that have been brought against the Defendant, THE CITY OF NEW YORK.
89. That the aforementioned customs and/or policies may be inferred from the existence of other similar civil rights actions that have been brought against the Defendant, CITY OF NEW YORK POLICE DEPARTMENT.
90. That by reason of the allegations as set forth in all of the causes of action set forth in this complaint, the Plaintiff, DENNIS DEMARCO, was caused to have civil rights, as guaranteed under the United States Constitution, including the Fourth, Fifth, and Fourteenth Amendments, violated by the Defendant and/or Defendant's herein as set forth under 42 U.S.C. §1983.

91. That by reason of the foregoing, the Plaintiff, DENNIS DEMARCO, was injured, rendered sick, sore, lame, caused to undergo hospital and medical treatment, was unable to pursue his usual and regular activities, and upon information and belief, his injuries are permanent in nature and effect.
92. That this action falls within one or more of the exceptions set forth in Civil Practice Laws and Rules §1602.
93. That by reason of the foregoing, the Plaintiff, DENNIS DEMARCO, has sustained damages in an amount in excess of the jurisdictional limits of all lower Courts.

AS AND FOR A SEVENTH CAUSE OF ACTION

94. That the Plaintiff, DENNIS DEMARCO, repeats, reiterates, and realleges, each and every allegation as set forth in paragraphs 1 through 93 with the same force and effect as if set forth at length herein.
95. That the Plaintiff, DENNIS DEMARCO, did not commit any illegal act, nor did the individually named Defendant, DAVID BENNETT, have reason to believe that the Plaintiff committed an unlawful act, either before or at the time he was falsely arrested and imprisoned, assaulted and battered, excessive force was used against him, and deprived him of his constitutional rights pursuant to the Fourth, Fifth, and Fourteenth Amendments as set forth in the Constitution of the United States, 42 U.S.C. §1983, and the Constitution of the State of New York.
96. That at all times hereinafter mentioned, Defendant, DAVID BENNETT, was employed in his respective capacity by the Defendant and/or Defendants and was acting under the color of his official capacity and his act were performed under the color of the policies, statutes, ordinances, rules and regulations of the Defendant and/or Defendant.
97. That at all times hereinafter mentioned, Defendant, DAVID BENNETT, was employed in his respective capacity by the Defendant, THE CITY OF NEW YORK, and was acting under the color of his official capacity and his act were performed under the color of the policies, statutes, ordinances, rules and regulations of the Defendant, THE CITY OF NEW YORK.
98. That at all times hereinafter mentioned, Defendant, DAVID BENNETT, was employed in his respective capacity by the Defendant, CITY OF NEW YORK POLICE DEPARTMENT, and was acting under the color of his official capacity and his act were

performed under the color of the policies, statutes, ordinances, rules and regulations of the Defendant, CITY OF NEW YORK POLICE DEPARTMENT.

99. Defendant, DAVID BENNETT, is named in his individual and official capacities for his violation of the constitutional rights of Plaintiff, DENNIS DEMARCO, pursuant to 42 U.S.C. 1983. Although Defendant and/or Defendants knew or should have known of this pattern of conduct carried out by their agents, servants and/or employees, the Defendant and/or Defendants, have not taken any steps or made any efforts to halt this course of conduct, to make redress to the Plaintiff, DENNIS DEMARCO, or other citizens injured thereby or, upon information and belief, to take any disciplinary action against their employees or agents.
100. Defendant, DAVID BENNETT, is named in his individual and official capacities for his violation of the constitutional rights of Plaintiff, DENNIS DEMARCO, pursuant to 42 U.S.C. 1983. Although Defendant and/or Defendants knew or should have known of this pattern of conduct carried out by their agents, servants and/or employees, the Defendant, THE CITY OF NEW YORK, have not taken any steps or made any efforts to halt this course of conduct, to make redress to the Plaintiff, DENNIS DEMARCO, or other citizens injured thereby or, upon information and belief, to take any disciplinary action against their employees or agents.
101. Defendant, DAVID BENNETT, is named in his individual and official capacities for his violation of the constitutional rights of Plaintiff, DENNIS DEMARCO, pursuant to 42 U.S.C. 1983. Although Defendant and/or Defendants knew or should have known of this pattern of conduct carried out by their agents, servants and/or employees, the Defendant, CITY OF NEW YORK POLICE DEPARTMENT, have not taken any steps or made any efforts to halt this course of conduct, to make redress to the Plaintiff, DENNIS DEMARCO, or other citizens injured thereby or, upon information and belief, to take any disciplinary action against their employees or agents.
102. The unlawful and illegal conduct of the Defendants, their agents, servants and/or employees and each of them, deprived the Plaintiff, DENNIS DEMARCO, of the following rights, privileges and immunities guaranteed by the Constitution of the United States and of the State of New York: the Right of Plaintiff, DENNIS DEMARCO, to be secure in his person and effects against unreasonable search and seizure under the Fourth,

Fifth, and Fourteenth Amendments to the Constitution of the United States; the right of Plaintiff, DENNIS DEMARCO, to be informed of the nature and cause of the accusation against him as guaranteed by the Six and Fourteenth Amendments to the Constitution of the United States; the right of Plaintiff, DENNIS DEMARCO, to not be deprived of life, liberty, or property, without due process of law; the right of Plaintiff, DENNIS DEMARCO, to the equal protection of the laws secured by the Fourteenth Amendment to the Constitution of the United States.

103. That the aforementioned deprivation of the Constitutional rights of the Plaintiff, DENNIS DEMARCO, was the result of the unconstitutional acts of the Defendant, DAVID BENNETT, while acting under color of state law and within the scope of his employment.
104. That the aforementioned deprivation of the Constitutional rights of the Plaintiff, DENNIS DEMARCO, was the result of the Defendant and/or Defendants' custom and/or policy of arresting individuals without probable cause.
105. That the aforementioned deprivation of the Constitutional rights of the Plaintiff, DENNIS DEMARCO, was the result of the Defendant, THE CITY OF NEW YORK, custom and/or policy of arresting individuals without probable cause.
106. That the aforementioned deprivation of the Constitutional rights of the Plaintiff, DENNIS DEMARCO, was the result of the Defendant, CITY OF NEW YORK POLICE DEPARTMENT, custom and/or policy of arresting individuals without probable cause.
107. That the aforementioned deprivation of the Constitutional rights of the Plaintiff, DENNIS DEMARCO, was the result of the Defendant and/or Defendants' custom and/or policy of failing to discipline officers for arresting individuals without probable cause.
108. That the aforementioned deprivation of the Constitutional rights of the Plaintiff, DENNIS DEMARCO, was the result of the Defendant, THE CITY OF NEW YORK, custom and/or policy of failing to discipline officers for arresting individuals without probable cause.
109. That the aforementioned deprivation of the Constitutional rights of the Plaintiff, DENNIS DEMARCO, was the result of the Defendant, CITY OF NEW YORK POLICE DEPARTMENT, custom and/or policy of failing to discipline officers for arresting individuals without probable cause.

110. That the aforementioned customs and/or policies may be inferred from the existence of other similar civil rights actions that have been brought against the Defendant and/or Defendants.
111. That the aforementioned customs and/or policies may be inferred from the existence of other similar civil rights actions that have been brought against the Defendant, THE CITY OF NEW YORK.
112. That the aforementioned customs and/or policies may be inferred from the existence of other similar civil rights actions that have been brought against the Defendant, CITY OF NEW YORK POLICE DEPARTMENT.
113. That by reason of the allegations as set forth in all of the causes of action set forth in this complaint, the Plaintiff, DENNIS DEMARCO, was caused to have civil rights, as guaranteed under the United States Constitution, including the Fourth, Fifth, and Fourteenth Amendments, violated by the Defendant and/or Defendant's herein as set forth under 42 U.S.C. §1983.
114. That by reason of the foregoing, the Plaintiff, DENNIS DEMARCO, was injured, rendered sick, sore, lame, caused to undergo hospital and medical treatment, was unable to pursue his usual and regular activities, and upon information and belief, his injuries are permanent in nature and effect.
115. That this action falls within one or more of the exceptions set forth in Civil Practice Laws and Rules §1602.
116. That by reason of the foregoing, the Plaintiff, DENNIS DEMARCO, has sustained damages in an amount in excess of the jurisdictional limits of all lower Courts.

AS AND FOR A EIGHTH CAUSE OF ACTION

117. That the Plaintiff, DENNIS DEMARCO, repeats, reiterates, and realleges, each and every allegation as set forth in paragraphs 1 through 116 with the same force and effect as if set forth at length herein.
118. That the Plaintiff, DENNIS DEMARCO, did not commit any illegal act, nor did the individually named Defendant, DAVID BENNETT, have reason to believe that the Plaintiff committed an unlawful act, either before or at the time he was falsely arrested and imprisoned, assaulted and battered, excessive force was used against him, and deprived him of his constitutional rights pursuant to the Fourth, Fifth, and Fourteenth Amendments

as set forth in the Constitution of the United States, 42 U.S.C. §1983, and the Constitution of the State of New York.

119. That at all times hereinafter mentioned, Defendant, DAVID BENNETT, was employed in his respective capacity by the Defendant and/or Defendants and was acting under the color of his official capacity and his act were performed under the color of the policies, statutes, ordinances, rules and regulations of the Defendant and/or Defendant.

120. That at all times hereinafter mentioned, Defendant, DAVID BENNETT, was employed in his respective capacity by the Defendant, THE CITY OF NEW YORK, and was acting under the color of his official capacity and his act were performed under the color of the policies, statutes, ordinances, rules and regulations of the Defendant, THE CITY OF NEW YORK.

121. That at all times hereinafter mentioned, Defendant, DAVID BENNETT, was employed in his respective capacity by the Defendant, CITY OF NEW YORK POLICE DEPARTMENT, and was acting under the color of his official capacity and his act were performed under the color of the policies, statutes, ordinances, rules and regulations of the Defendant, CITY OF NEW YORK POLICE DEPARTMENT.

122. Defendant, DAVID BENNETT, is named in his individual and official capacities for his violation of the constitutional rights of Plaintiff, DENNIS DEMARCO, pursuant to 42 U.S.C. 1983. Although Defendant and/or Defendants knew or should have known of this pattern of conduct carried out by their agents, servants and/or employees, the Defendant and/or Defendants, have not taken any steps or made any efforts to halt this course of conduct, to make redress to the Plaintiff, DENNIS DEMARCO, or other citizens injured thereby or, upon information and belief, to take any disciplinary action against their employees or agents.

123. Defendant, DAVID BENNETT, is named in his individual and official capacities for his violation of the constitutional rights of Plaintiff, DENNIS DEMARCO, pursuant to 42 U.S.C. 1983. Although Defendant and/or Defendants knew or should have known of this pattern of conduct carried out by their agents, servants and/or employees, the Defendant, THE CITY OF NEW YORK, have not taken any steps or made any efforts to halt this course of conduct, to make redress to the Plaintiff, DENNIS DEMARCO, or

other citizens injured thereby or, upon information and belief, to take any disciplinary action against their employees or agents.

124. Defendant, DAVID BENNETT, is named in his individual and official capacities for his violation of the constitutional rights of Plaintiff, DENNIS DEMARCO, pursuant to 42 U.S.C. 1983. Although Defendant and/or Defendants knew or should have known of this pattern of conduct carried out by their agents, servants and/or employees, the Defendant, CITY OF NEW YORK POLICE DEPARTMENT, have not taken any steps or made any efforts to halt this course of conduct, to make redress to the Plaintiff, DENNIS DEMARCO, or other citizens injured thereby or, upon information and belief, to take any disciplinary action against their employees or agents.

125. The unlawful and illegal conduct of the Defendants, their agents, servants and/or employees and each of them, deprived the Plaintiff, DENNIS DEMARCO, of the following rights, privileges and immunities guaranteed by the Constitution of the United States and of the State of New York: the Right of Plaintiff, DENNIS DEMARCO, to be secure in his person and effects against unreasonable search and seizure under the Fourth, Fifth, and Fourteenth Amendments to the Constitution of the United States; the right of Plaintiff, DENNIS DEMARCO, to be informed of the nature and cause of the accusation against him as guaranteed by the Six and Fourteenth Amendments to the Constitution of the United States; the right of Plaintiff, DENNIS DEMARCO, to not be deprived of life, liberty, or property, without due process of law; the right of Plaintiff, DENNIS DEMARCO, to the equal protection of the laws secured by the Fourteenth Amendment to the Constitution of the United States.

126. That the aforementioned deprivation of the Constitutional rights of the Plaintiff, DENNIS DEMARCO, was the result of the unconstitutional acts of the Defendant, DAVID BENNETT, while acting under color of state law and within the scope of his employment.

127. That the aforementioned deprivation of the Constitutional rights of the Plaintiff, DENNIS DEMARCO, was the result of the Defendant and/or Defendants' custom and/or policy of using excessive force.

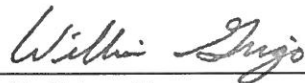
128. That the aforementioned deprivation of the Constitutional rights of the Plaintiff, DENNIS DEMARCO, was the result of the Defendant, THE CITY OF NEW YORK, custom and/or policy of using excessive force.
129. That the aforementioned deprivation of the Constitutional rights of the Plaintiff, DENNIS DEMARCO, was the result of the Defendant, CITY OF NEW YORK POLICE DEPARTMENT, custom and/or policy of using excessive force.
130. That the aforementioned deprivation of the Constitutional rights of the Plaintiff, DENNIS DEMARCO, was the result of the Defendant and/or Defendants' custom and/or policy of failing to discipline officers for using excessive force.
131. That the aforementioned deprivation of the Constitutional rights of the Plaintiff, DENNIS DEMARCO, was the result of the Defendant, THE CITY OF NEW YORK, custom and/or policy of failing to discipline officers for using excessive force.
132. That the aforementioned deprivation of the Constitutional rights of the Plaintiff, DENNIS DEMARCO, was the result of the Defendant, CITY OF NEW YORK POLICE DEPARTMENT, custom and/or policy of failing to discipline officers for using excessive force.
133. That the aforementioned customs and/or policies may be inferred from the existence of other similar civil rights actions that have been brought against the Defendant and/or Defendants.
134. That the aforementioned customs and/or policies may be inferred from the existence of other similar civil rights actions that have been brought against the Defendant, THE CITY OF NEW YORK.
135. That the aforementioned customs and/or policies may be inferred from the existence of other similar civil rights actions that have been brought against the Defendant, CITY OF NEW YORK POLICE DEPARTMENT.
136. That by reason of the allegations as set forth in all of the causes of action set forth in this complaint, the Plaintiff, DENNIS DEMARCO, was caused to have civil rights, as guaranteed under the United States Constitution, including the Fourth, Fifth, and Fourteenth Amendments, violated by the Defendant and/or Defendant's herein as set forth under 42 U.S.C. §1983.

137. That by reason of the foregoing, the Plaintiff, DENNIS DEMARCO, was injured, rendered sick, sore, lame, caused to undergo hospital and medical treatment, was unable to pursue his usual and regular activities, and upon information and belief, his injuries are permanent in nature and effect.
138. That this action falls within one or more of the exceptions set forth in Civil Practice Laws and Rules §1602.
139. That by reason of the foregoing, the Plaintiff, DENNIS DEMARCO, has sustained damages in an amount in excess of the jurisdictional limits of all lower Courts.

WHEREFORE, Plaintiff, DENNIS DEMARCO, respectfully demands judgment against the Defendants on all causes of action set forth herein in an amount in excess of the jurisdictional limits of all lower courts which would otherwise have jurisdiction, together with interest, the costs and disbursements, and legal fees, and for such other and further relief as the Court may deem appropriate.

Dated: Southampton, New York
August 3, 2016

Respectfully Submitted,



William E. Grigo, Esq.
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Attorneys for the Plaintiff
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Southampton, New York 11968
Tel.: (631) 287-4988
Fax: (631) 204-6839

**SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF QUEENS**

----- x

DENNIS DEMARCO,

Index No.:

-against-

VERIFICATION

THE CITY OF NEW YORK, THE CITY OF NEW YORK
POLICE DEPARTMENT and DAVID BENNETT

Defendant.

----- x

STATE OF NEW YORK)
) ss.:
COUNTY OF SUFFOLK)

DENNIS DEMARCO, being duly sworn, deposes and says, that he is the Plaintiff in the foregoing Verified Complaint; that he has read said petition, and that the contents thereof are true to his knowledge, except as to those matters therein stated to be alleged on information and belief, and as to those matters he believes the same to be true.



Dennis DeMarco

Sworn to before me this 3rd day of August, 2016



Notary Public

MARISSA L. GLASS
NOTARY PUBLIC-STATE OF NEW YORK
NO. 02GL6331857
QUALIFIED IN SUFFOLK COUNTY
MY COMMISSION EXPIRES 10-19-2019

Index No.:

**SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF QUEENS**

----- X

DENNIS DEMARCO,

-against-

THE CITY OF NEW YORK, CITY OF NEW YORK
POLICE DEPARTMENT and DAVID BENNETT

Defendant.

----- X

SUMMONS AND VERIFIED COMPLAINT

LAW OFFICE OF WILLIAM E. GRIGO, P.C.

Attorney for Plaintiff

71 HILL STREET

BUILDING CD, SUITE 10

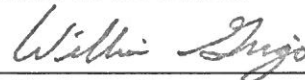
SOUTHAMPTON, NEW YORK 11968

TEL.: (631) 287-4988

FAX: (631) 204-6839

Certification Pursuant to 22 NYCRR §130-1.1a

William E. Grigo, Esq. hereby certifies that the foregoing is not frivolous as defined in subsection (c) of Section 130-1.1 of the Rules of the Chief Administrator of the Courts.



William E. Grigo, Esq.

Dated: Southampton, New York
August 3, 2016